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Opposition to Target-Limited Waiver Motion

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Document 19 Filed April 29, 2026

Mateo Serrano, through Celia Arden, opposes immediate dismissal of his preserved § 3B1.1(b) target. The government bears the burden of establishing a valid waiver and demonstrating that the precise appellate demand fits within it. The Court should construe the accepted provision from the complete plea record and should not treat the existence of broad language as a substitute for that inquiry.

Serrano does not allege government breach, attack the guilty plea, or contend that the allocution exception automatically revives every sentencing issue. He preserves his arguments concerning knowing assent and scope and asks the Court, at minimum, to defer final dismissal until those matters can be considered with the full briefing context.

The fallback is essential. If the Court grants the motion, its order must dismiss only the enhancement target without approving the district court's role finding. The agreement expressly leaves the complete-denial-of-allocution claim outside the surrender. That claim, its plain-error showing, and the request for full resentencing must remain pending without prejudice.

Government's Burden and Procedural Posture

Boutcher requires de novo consideration of breach, knowing and intelligent assent, and issue-specific scope before enforcement. 998 F.3d 603, 608–09 (4th Cir. 2021). The government has timely raised its defense in its first substantive request for disposition, but promptness does not establish the other elements.

The enhancement issue was expressly disputed at sentencing. Serrano objected to the proposed three levels, litigated the person-management standard, and renewed the objection after the ruling. Preservation does not defeat a valid waiver, yet it defines the exact claim the government asks this Court to remove.

That target is narrower than the entire sentencing appeal. Serrano challenges the supervisory inference only to the extent appellate review remains available. Separately, he alleges that the court never gave him the personal opportunity to speak before punishment. The government correctly does not seek dismissal of the latter claim under the waiver.

The Court should avoid language that resolves either target by association with the other. A threshold ruling can determine whether appellate review of the adjustment was surrendered. It cannot decide the protected role facts, and it cannot prejudge whether complete denial affected Serrano's substantial rights.

Validity Arguments Are Preserved

Rule 11(b)(1)(N) requires a personal determination that the defendant understands an appellate-waiver term. The transcript includes separate questioning about the broad surrender and the allocution reservation. Serrano acknowledges those answers while preserving the legal question whether the totality establishes knowing agreement to the exact target now identified by the government.

Smith cautions that validity does not follow automatically from the existence of a written clause or a general yes-or-no response. *United States v. Smith*, 134 F.4th 248, 255–61 (4th Cir. 2025). The inquiry considers the explanation actually given, the defendant's answers, the provision's wording, and the circumstances of the plea.

Here the colloquy strongly addressed the distinction between a role objection below and an appeal after sentence. That record may ultimately support enforcement. Serrano nevertheless does not concede that every characterization in the government's motion is a binding account of his understanding or that scope and validity may be collapsed into one conclusion.

This preserved challenge is limited. Serrano does not seek plea withdrawal, assert coercion, or identify an undisclosed promise. He asks the Court to make the required independent determination and, if it rules against him, to state that validity extends only to the target falling within the language actually accepted.

Scope Must Be Strictly Targeted

The agreement broadly concerns appeals from the conviction and sentence and mentions review under 18 U.S.C. § 3742. The role objection is a Guidelines-application claim of the type ordinarily brought through that statute. Those features support the government's scope position, but they do not authorize dismissal beyond the specifically identified enhancement target.

The Court should distinguish a present appellate merits demand from matters that may arise after another portion of the sentence is vacated. Serrano's current challenge asks whether the three-level finding was proper. If that demand is waived, it may be dismissed. A later district-court obligation to calculate a new advisory range at a full resentencing would not be the same appellate target.

Likewise, the waiver should not be described as affirming offense level 20, making the supervision finding immutable, or limiting the district court's future discretion. Enforcement is a refusal to review the covered claim, not a substantive endorsement.

Serrano maintains that any uncertainty should be resolved from the agreement and colloquy as a whole, with the specific allocution language given independent force. He does not rely on confidential presentence facts to expand scope and provides no operational description of the fictional offense.

The Allocution Exception Controls Its Own Target

The government appropriately concedes that complete denial falls outside the written surrender. Ashford involved a generic sentence waiver and held that ordinary breadth could encompass allocution. 103 F.4th 1052, 1056–57 (4th Cir. 2024). Serrano's agreement differs because it expressly singles out the total absence of a personal opportunity.

The sentencing transcript presents that allegation directly. After Arden completed argument, the judge asked counsel whether counsel had more, stated that she would proceed, and imposed sentence. Serrano was not invited to deliver prepared remarks. The court spoke to him later only about appellate timing.

Whether those facts establish plain error and prejudice remains for merits decision. The waiver motion cannot resolve them, and dismissal of the role target cannot narrow the exception into a merely symbolic right to brief error without obtaining an effective remedy.

If Serrano proves complete denial and a real possibility of a lower sentence under Muhammad, the requested relief is vacatur and a full resentencing. 478 F.3d 247, 249–51 (4th Cir. 2007). That remedy permits the district court to perform ordinary sentencing tasks anew without turning the previously dismissed role appeal into a merits ruling.

No Enhancement Merits Ruling Is Appropriate

The threshold record identifies the legal character of the adjustment but does not require decision of its correctness. Under Steffen, § 3B1.1(b) depends on management or supervision of another responsible person rather than assets or activity alone. 741 F.3d 411, 414–16 (4th Cir. 2013).

The parties agreed that five people participated and disputed only the relationship between Serrano and Alina Pared. The defense described independent coordination; the prosecution described limited direction. Judge Elara Venn selected the latter inference by a preponderance. Those facts show why the issue is a conventional Guidelines target.

They do not supply a reason to affirm on the merits while simultaneously enforcing the waiver. If review was surrendered, the Court lacks a need to choose between the competing characterizations. A clean dismissal avoids advisory discussion of sealed facts and preserves the distinction between threshold enforcement and substantive appellate review.

Serrano continues to disagree with the finding. His opposition should not be mistaken for abandonment of that position. But his principal protection at this stage is precision: an adverse waiver order must say only that appellate adjudication of the enhancement target is unavailable.

Fallback Allocution Claim and Remedy

Should the Court enforce the waiver, the appeal still presents a complete Rule 32 omission. Jennings distinguishes a limited opportunity from no opportunity at all. *United States v. Jennings*, 130 F.4th 157, 161–64 (4th Cir. 2025). The record here shows the latter because neither counsel's remarks nor a post-sentence timing question invited Serrano to mitigate punishment personally.

The absence of a contemporaneous objection triggers plain-error review, not automatic forfeiture of the expressly retained claim. Before the hearing, Serrano had prepared a statement concerning remorse and lawful change. Counsel sought a 24-month term. The court imposed 36 months within a range that left meaningful discretion.

Those circumstances support the possibility standard described in *Muhammad*. They will be addressed through merits briefing and the protected record, not decided on this motion. The government's reserved response may contest prejudice or remedy without contradicting its waiver-scope concession.

Any order granting partial dismissal should therefore direct continued briefing on complete denial and leave full resentencing relief available. It should not suggest that the dismissed enhancement target fixes the calculation for a proceeding that would follow vacatur of the current sentence.

Requested Ruling and Service

Serrano asks the Court to deny or defer the government's motion until waiver validity and scope can be considered with the complete appellate presentation. The government has invoked the defense promptly, but Serrano preserves the independent requirements of knowing assent and exact coverage.

Alternatively, the Court should enter a narrowly framed order. It may dismiss appellate review of the § 3B1.1(b) target if it finds the agreement enforceable. It should expressly decline to decide whether Serrano supervised Pared and should avoid language affirming the enhancement or the resulting advisory range.

Under either disposition, the complete-denial claim must continue. The parties agree that it falls within the written exception. Serrano retains his request to vacate the sentence and obtain a full resentencing after personal allocution, while the government retains its merits response.

Celia Arden signs this opposition for Serrano through the fictional Federal Defender Exercise Office for the Middle District of North Carolina. She certifies synthetic service on Bram Ives on April 29, 2026. The filing includes no authentic address, account, bar number, credential, private identifier, presentence report, or usable description of wrongdoing.